

Mohd. Iqbal Ansari v. Roshan Jacob (Incharge M.D./G.M., K.E.S.C. Ltd.)

Allahabad High Court · Single Judge · 10 October 2014 · Contempt Application (Civil) No. 5663 of 2014 · **Contempt disposed with two-month warning to comply with clause 4.3 writ direction.**

HEADNOTE

Civil contempt alleging non-compliance of a writ order that had directed K.E.S.C. Ltd. to decide in accordance with law if the applicant complied with clause 4.3 of the Electricity Supply Code, 2005. The Court disposed of the application at this stage, holding the opposite parties bound by the writ directions and warning that failure to comply within two months of receipt, without reasonable cause, would attract the Contempt of Courts Act, with liberty to approach the Court again.

FACTUAL SUMMARY

Mohd. Iqbal Ansari moved a civil contempt application against the Incharge Managing Director/General Manager of K.E.S.C. Ltd. and another. He alleged that they had flouted the Allahabad High Court's order dated 13 May 2014 in Civil Misc. Writ Petition No. 26687 of 2014, which had directed them to take an appropriate decision in accordance with law if he complied with clause 4.3 of the Electricity Supply Code, 2005. He said that order was served on 22 May 2014 and that the licensee had still not decided his matter.

HOLDING-UNITS

HOLDING-UNIT · UP-2005::4.3

contempt enforcement of writ direction to decide on clause 4.3 compliance

HOLDING

Where a writ court has directed the licensee to take an appropriate decision in accordance with law if the consumer complies with clause 4.3 of the Electricity Supply Code, 2005, the licensee is bound by that direction. On a contempt application alleging non-decision after service of the writ order, the Court disposed of the application at this stage, warning that failure to comply within two months of receipt of this order, without reasonable cause, would invite proceedings under the Contempt of Courts Act, with liberty to the applicant to approach the Court again. ¶ 1

NOT DECIDED — NEGATIVE AUTHORITY

NOT DECIDED — WHETHER THE APPLICANT HAD COMPLIED WITH CLAUSE 4.3 OR WAS ENTITLED TO A CONNECTION OR OTHER SUPPLY-CODE RELIEF

The Court enforced the prior writ direction to decide in accordance with law and did not examine compliance or merits. ¶ 1

NOT DECIDED — WHETHER THE OPPOSITE PARTIES WERE IN CONTEMPT OF THE WRIT ORDER DATED 13.05.2014

No finding of contempt was recorded; the application was disposed of with a compliance warning. ¶ 1